

FIRST ENDORSEMENT

Chief Prosecutor APU, Andre Applewhite, Civilian Complaint Review Board to Deputy Commissioner Paul M. Gamble, Sr. Department Advocate's Office June 27, 2024. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2023-28187 against Detective Jonathan Trahan, Tax Registry No. 955590. This case was conferenced on June 11, 2024, before Assistant Deputy Commissioner of Trials, Anne E. Stone, who approved the negotiated penalty of a Command Discipline Schedule A and the forfeiture of five (5) vacation days. Charges and Specifications will be dismissed for plea purposes.

Andre D. Applewhite

Andre Applewhite
Chief Prosecutor APU
New York City Civilian Complaint Review Board



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2023-28187
BOOK & PAGE NO. Page 1 of 2
PERSONNEL ORDER NO.

RANK/TITLE DT3	SURNAME, TRAHAN	FIRST JONATHAN	M.I. T	COMMAND INTELL-CRIM. SECT. (DORMANT)
SHIELD NO. 3627	TAX REGISTRY NO. 955590	SOCIAL SECURITY NO.		DATE APPOINTED 07/09/2013
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1. 1. Detective Jonathan TRAHAN, on or about October 19, 2021, at approximately 2137, while assigned to INT FIO PRG and on duty, in the vicinity of 2nd Avenue and East 120th Street, New York County, engaged in conduct prejudicial to good order, efficiency, or discipline of the Department in that they were discourteous, in that, they spoke discourteously to § 87(2)(b) to wit, they said: "...why the fuck you lying..." without sufficient legal authority.	DISMISSED	A - COMMAND DISCIPLINE 1.00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule A Command Discipline with the forfeiture of the amount of vacation days as indicated. VACATION DAYS 5.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.
2. 2. Detective Jonathan TRAHAN, on or about October 19, 2021, at approximately 2137, while assigned to INT FIO PRG and on duty, in the vicinity of 2nd Avenue and East 120th Street, New York County, abused their authority as a member of the New York City Police Department, in that, they strip-searched § 87(2)(b) by pulling the waistband of § 87(2)(b) underwear, making his genitals visible, without sufficient legal authority.	DISMISSED	
3. Detective Jonathan TRAHAN, on or about October 19, 2021, at approximately 2137, while assigned to INT FIO PRG and on duty, in the vicinity of 2nd Avenue and East 120th	DISMISSED	


FIRST DEPUTY COMMISSIONER

8/1/24
DATE

POLICE COMMISSIONER'S APPROVAL

- ☒ Approved
☐ Disapproved
☐ Other Action (Describe)


POLICE COMMISSIONER

8/23/24
DATE



DISPOSITION OF CHARGES
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BOOK & PAGE NO. Page <u>2</u> of <u>2</u>
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TRIAL COMMISSIONER				
SPECIFICATION		DISPOSITION		RECOMMENDED PENALTY PLEA [X] TRIAL []
Street, New York County, abused their authority as a member of the New York City Police Department, in that, they searched the vehicle in which § 87(2)(b) was an occupant without, sufficient legal authority.				

DC Harris 8/9/24
FIRST DEPUTY COMMISSIONER DATE

POLICE COMMISSIONER'S APPROVAL

- ☒ Approved
☐ Disapproved
☐ Other Action (Describe)

Edward A. Caber 8/23/24
POLICE COMMISSIONER DATE

THIRD ENDORSEMENT

First Deputy Commissioner to Police Commissioner August 5, 2024. Contents noted. I reviewed the negotiated plea in Disciplinary Case No. 2023-28187 against Detective Jonathan Trahan, Tax No. 955590, with the recommendation that Charges and Specifications against Detective Trahan be dismissed and that Detective Trahan receive a Schedule "A" Command Discipline, with the forfeiture of five (5) vacation days. Assistant Deputy Commissioner, Trials Anne E. Stone reviewed this case and made a favorable recommendation pertaining to the proposed settlement; I concur. **FOR YOUR APPROVAL.**

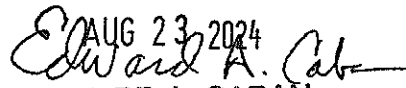


Tania I. Kinsella

FIRST DEPUTY COMMISSIONER

TIK/jpc

APPROVED

AUG 23 2024

EDWARD A. CABAN
POLICE COMMISSIONER